

18TH FORCE SUPPORT SQUADRON OPERATING INSTRUCTION 34-223-1**5 February 2024**

18 FSS All Activities PRIVATE ORGANIZATIONS PROGRAM

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

OPR: 18 FSS/FSR
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- 1. SCOPE:** This Operating Instruction (OI) provides guidance and procedures for establishing and operating Private Organizations (POs) on Kadena Air Base (AB). This publication applies to all 18th Wing (18 WG) military, civilian, contract personnel and units assigned or attached to Kadena AB unless limited by waiver granted under host-tenant agreements.
- 2. REFERENCES:**
 - 2.1. AFI 34-223, *Private Organizations (PO) Program*.
 - 2.2. AFI 36-3101, *Fundraising Within the Air Force*.
- 3. POLICY:**
 - 3.1. POs are self-sustained special interest groups, set up for individuals with common interests, acting outside the scope of any official capacity within the Federal Government. PO activities primarily benefit their members and operate with the written consent of 18 Mission Support Group Commander/Deputy Director (18 MSG/CC/DD).
 - 3.2. PO functions will be separate and distinct from official military duties and functions.
- 4. INSTALLATION COMMANDER:**
 - 4.1. The 18 Wing Commander (18 WG/CC) delegates to the 18 MSG/CC the authority to:
 - 4.1.1. Authorize the establishment and operation of a PO when he/she determines it will make a positive contribution to the quality of life of base personnel. The 18 MSG/CC may withdraw the authorization if the PO prejudices or discredits the US Government, conflicts with government activities or for any other reason or just cause.
 - 4.1.2. Approve requests for fundraisers and accumulation of funds and further delegates approval authority to the 18th Force Support Squadron Director/Deputy Director (18 FSS/CL/CD).
 - 4.2. Ensures background checks are completed for employees and volunteers of POs who have contact with children under 18 in DoD operated, contracted, or community-based programs that are used to supplement or expand childcare or youth services, according to DoD Instruction 1402.5, *Background Checks on Individuals in DoD Childcare Services Programs* (Reference(i)).

5. FORCE SUPPORT SQUADRON COMMANDER/DIRECTOR:

- 5.1. The 18 FSS/CL/CD monitors and administers the PO program.
 - 5.1.1. Advises the 18 WG/CC if conditions changed by the PO warrant further review, documentation, and reconsideration for continued permission to operate on the installation.
 - 5.1.2. Approves all fundraising events on Kadena AB.
 - 5.1.3. Ensures that the 18 FSS Resource Management (FSR) keeps a file on each PO. The 18 FSS/CL designates 18 FSS/FSR to monitor activities and advise on PO related issues.
 - 5.1.4. Is the approval authority for Unofficial Activities' (UA) accumulation of more than \$1,000 for a time not to exceed six (6)-months if the substantial majority (more than 75%) of assets will be expended on an upcoming large unit event such as a holiday party, military ball, etc. The \$1,000 average monthly limit may be increased by \$100 for every 50-unit member over 300 members, to a maximum of \$5,000 monthly average.

6. RESOURCE MANAGEMENT FLIGHT CHIEF:

- 6.1. The 18 FSS/FSR Finance (FSRF) PO Monitor will establish and maintain an electronic file on each PO to be reviewed annually by the 18 FSS/FSR to ensure compliance with regulations. At a minimum, files must contain:
 - 6.1.1. Constitution and Bylaws must be signed by all members on the board.
 - 6.1.2. Revalidation letter showing date of review.
 - 6.1.3. Financial statements due at the end of each quarter (bank statements and income and expense reports).
 - 6.1.3.1. Financial statements must include fundraiser costs, income, and donation receipts.
 - 6.1.3.2. PO's with less than \$5,000 in annual gross revenue are not required to file financial statements but must provide proof of less than \$5,000 in annual gross revenue.
 - 6.1.4. Audit Reports (if applicable, AFI 34-223, para. 10.7.).
 - 6.1.5. Proof of required liability insurance or appropriate waiver.
 - 6.1.5.1. Revalidation and liability or insurance waiver will be completed on alternating years of each other.
 - 6.1.6. Current list of elected officers and POC.
 - 6.1.7. Meeting minutes must be submitted at the end of each quarter.
 - 6.1.7.1. If no meeting was held, submit a letter stating the month and reason.
 - 6.1.8. Tax Exempt Approval from the Internal Revenue Service (if applicable).

- 6.1.9. Other documents required by AFSVA, PO guide or AFI 34-223.
- 6.1.10. If the above documents are not submitted, the PO will not be considered current and as such will not be authorized to conduct fundraising events on Kadena until their file is current.

7. SETTING UP A PO:

- 7.1. The PO must submit a written constitution and bylaws, proof of liability insurance or appropriate waiver, and a current list of officers to the 18 FSS/FSRF PO Monitor who will review and coordinate with 18 FSS/FSR, 18 WG Judge Advocate (JA) and 18 FSS/CL before submitting to 18 MSG/CC for final approval.
- 7.2. The POs constitution and bylaws must contain the following:
 - 7.2.1. The nature, function, objectives, membership eligibility and sources of income for the PO.
 - 7.2.2. Notification that all members must be made aware that they are jointly and severally liable for the obligations of the PO. The absence of liability insurance places their personal assets immediately at risk in the event of PO liability.
 - 7.2.3. A time phased action plan showing how they plan to dispose of residual assets remaining in the PO treasury after satisfaction of outstanding debts in the event that the PO discontinues operations.
 - 7.2.4. The PO must identify the intended use of any funds generated from fundraising and relate to the function and purpose of the PO. Fundraising prices will be fair and bear a reasonable relationship to the cost of goods and services provided.
- 7.3. POs will reevaluate their constitution and bylaws every two years or when there is a change in the purpose, function, or membership eligibility, whichever comes first.

8. OPERATING A PO/UA (GENERAL):

- 8.1. The 18 MSG/CC provides limited supervision over POs and UAs. Their control lies in the power to authorize and withdraw authorization for the organization to operate on the installation in accordance with AFI 34-223 and this OI 34-223-1. The 18 MSG/CC does not control or dictate internal activities or structure of POs and UAs.
- 8.2. The following POs are authorized by 18 MSG/CC to conduct continuous resale operations:
 - 8.2.1. Kadena Enlisted Spouses Club (Thrift Store).
 - 8.2.2. Kadena Officers' Spouses Club (Gift Corner).
- 8.3. The following restrictions apply to POs/UAs:
 - 8.3.1. POs/UAs must not engage in activities that duplicate or compete with any Kadena Morale and Welfare (MWR) activities or the activities of any Nonappropriated Fund Instrumentality (NAFI), including Army and Air Force Exchange Service (AAFES).
 - 8.3.2. POs/UAs will not invite civilian news media, to include Pacific Stars and Stripes, to report on the events on

Kadena AB without first seeking approval from 18 WG Public Affairs.

- 8.3.3. POs/UAs may not solicit gifts or donations on base; however, POs/UAs may accept gifts and donations. Off-base solicitations must clearly state the request is for a PO and not for any part of the DoD, USAF, or Kadena AB. Donor/gift recognition may not be made publicly, unless made to those present at an event benefiting from the donation/gift.
- 8.3.4. PO will not sell or serve alcoholic beverages on Air Force installations. EXCEPTION: At the discretion of the installation commander, NAFIs operated by MWR may secure the aid of volunteers or persons providing gratuitous services to assist in the sale of MWR alcoholic beverages in exchange for a fee. PO units will not require Airmen to participate in the event. This may also apply to events, such as open houses or other special installation events. All personnel assisting the NAFI's and MWR program to sell alcoholic beverages at such events will be required to receive appropriate "Dram Shop" training as outlined within AFI 34-219, Alcohol Beverage Program.
- 8.3.5. POs/UA's may not conduct lotteries or other gambling-type activities. DoD 5500.07, JER Section 2-302. While on Government-owned or leased property or on duty for the Government, an employee shall not conduct or participate in any gambling activity, including operating a gambling device, conducting a lottery or pool, participating in a game for money or property, or selling or purchasing numbers slip or ticket.
- 8.3.6. POs and UA operating on an Air Force installation are prohibited from engaging in any conduct that has the effect of advertising for, making referrals to, or encouraging use of any commercial business concerns. The only exception to this policy is when a PO or UA/organization conducts an approved fundraising event through a third-party (e.g., the spouses club conducts an art sale as an approved fundraiser and contracts with an art dealer (third party) to provide the artwork to be sold).
- 8.3.7. The use of Government equipment and systems for other than official purposes are extremely limited. Official communication systems should not be used to advertise fundraiser (and membership) events unless the primary purpose of the communication is for other than support of the PO's efforts, but rather to notify unit Airmen of a local event of possible interest (e.g., lunchtime sale of food in a public area adjacent to the unit's geographic footprint).
- 8.3.8. Any event that may pose a risk of injury, fire hazard, involve the usage of the base water supply or expected to have participants of 300 or more must be endorsed by 18 WG Safety, 18 Civil Engineer Squadron (18 CES) Fire Protection Flight, 18 CES Environmental Office Base Water, 18 WG Anti- terrorism Officer and 18 Security Forces Squadron.
- 8.3.9. POs may be required to purchase additional liability insurance if they sponsor a high-risk activity.
- 8.3.10. POs must not conduct events without prior approval. POs who fail to submit required documents to fundraise or maintain their PO file with the PO Monitor will be reported to 18 MSG/CC, who holds the authority to withdraw PO authorization.
- 8.4. Failure to submit required documents to fundraise or to remain a PO will result in suspension of privileges as specified below:
 - 8.4.1. First occurrence: Suspension of all activities until file is current.
 - 8.4.2. Second occurrence: Suspension of all activities for six months.
 - 8.4.3. Third occurrence: Suspension of all activities for one year.

- 8.4.4. Fourth occurrence: Dissolution of the PO.
- 9. POs will submit a revised Officers Roster to the PO Monitor no later than 30 days from any officer changes or no less than each quarter.
- 10. Quarterly requirements (meeting minutes, income & expense reports, bank statements, and quarterly compliance) are due no later than 45 days after end of quarter.
- 11. **OPERATING A PO/UA (FUNDRAISING):**
 - 11.1. POs/UAs will conduct no more than three fundraising events per calendar quarter.
 - 11.1.1. POs/UAs will submit all fundraiser request to 18FSS.FSRF.KadenaPrivateOrg@us.af.mil.
 - 11.1.2. Additionally, the duration of fundraising events will be fact dependent, and may last three days over a holiday weekend.
 - 11.2. In order to promote fair and equitable fundraising opportunities, all POs and UAs are limited to one location per event (e.g., one Shoppette versus both locations). All fundraisers must be coordinated with the building custodian.
 - 11.3. The following guidance is provided for high demand fundraisers:
 - 11.3.1. Holiday themed events (e.g., Haunted Houses, festivals, and markets) will be authorized additional days and will count as one fundraising event.
 - 11.3.2. Holiday themed events at Kadena Marina located along Route 58 will not be permitted due to the risk of overflow traffic congestion and potential liability associated with non-SOFA personnel.
 - 11.3.3. The fundraiser must be conducted in a vacant building and not in a functional work area. POs are not allowed to "vacate" office furniture (e.g., desk, sofa) for the fundraiser.
 - 11.3.4. Candy grams, flower delivery services, and photo shoot services may compete with AAFES, thus POs/UAs must obtain approval from the AAFES Service Office. If approved, these events are limited to one PO/UA per location.
 - 11.3.5. 18 FSS large events such as Open House, Tinsel Town, Spooky Town, 4th of July, and Purple Up Bash slots/booths will be managed by the PO Monitor through the PO selection process. POs will submit their applications and a lottery will take place after the submission deadline is closed.
 - 11.3.5.1. Base-wide events such as Open House, Tinsel Town, Spooky Town, 4th of July, Purple Up Bash, and Gift Wrapping do not count toward the quarterly fundraisers.
 - 11.4. POs/UAs must submit a completed fundraising request form to PO Monitor no later than 21 calendar days prior to the scheduled event. Request may be sent to 18FSS.FSRF.KadenaPrivateOrg@us.af.mil. The request form must include:
 - 11.4.1. The PO/UA name (which cannot contain any WG, Group, Squadron, Flight, or DoD affiliation unless authorized by the wing commander).

- 11.4.1.1. If UA, form must include name, phone number, email address and digital or wet signature of POC in charge fundraising income and expenses.
- 11.4.2. The date/time (start and end) and location of event.
- 11.4.3. The email of the main POC and an additional POC.
- 11.4.4. A detailed description of the proposed event (e.g., event location and equipment being used).
- 11.4.5. The approval of the facility manager where the fundraising event will be held (i.e., AAFES, 18 FSS facility, etc.).
- 11.4.6. How funds from the fundraising event will be used. Donations to charities outside of the Combined Federal Campaign (CFC)/Air Force Assistance Fund or off-base entities is prohibited during CFC season.
- 11.4.7. Fundraising events involving food and beverages (excludes bottled water, canned drinks, and uncut fruits) must be approved by the 18 Medical Group Public Health Flight. Approval must be submitted with fundraiser request form.
- 11.4.8. POs will not assume proposed fundraising events will be approved. Fundraising events shall not be conducted until the PO has obtained written approval from the 18th FSS/CL.
- 11.4.9. A copy of the approved fundraising request form must be on site during the fundraising event.
- 11.4.10. POs/UAs will not drink alcohol or smoke while doing a fundraiser.

12. LOGISTICAL SUPPORT:

- 12.1. Any use of 18 FSS equipment, services or support to PO/UA fundraising or other PO/UA efforts will be assessed normal fees and charges.

13. DISSOLUTION OF A PO:

- 13.1. POs planning to dissolve must submit a time-phased action plan and request for dissolution to the PO Monitor. The action plan should include a financial report showing liabilities, assets, and a PO proposal to satisfy liabilities and distribute equipment and money.

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